
Interview Details

- [REDACTED] is a [REDACTED]-year-old black male, standing 5'9", weighing 156 pounds, with black hair and brown eyes.
- [REDACTED] is employed as a [REDACTED].

[REDACTED] was interviewed at the CCRB on October 22, 2012.

On October 12, 2012, at 11:35 p.m., [REDACTED] exited the [REDACTED]. [REDACTED] had worked from 11:00 a.m. until 11:30 p.m. at [REDACTED]. He did not leave the shopping center all day, including his lunch break, which he took between 3:00 p.m. and 4:00 p.m. [REDACTED] was wearing a lightweight camouflage green army fatigue jacket, with a grey hooded sweatshirt with a graphic on the front underneath, dark blue jeans with brown stripes on the back, black and red Nike sneakers and a black adjustable baseball cap, with the word "Diamond" in white lettering across the front.

[REDACTED] walked out of the building exit with his managers, [REDACTED] and [REDACTED] whose surnames he does not know. [REDACTED] was speaking on the phone with his girlfriend. [REDACTED] and [REDACTED] stopped at the bus stop which is on the southeast corner of the intersection, in front of the mall exit. [REDACTED] walked north along the sidewalk, crossed [REDACTED] the northeast corner and approached a "dollar van" which is a blue van that transports groups of people. In the van was the driver, who later told [REDACTED] that his name was [REDACTED] and provided his phone number, a female named [REDACTED] who provided her phone number to [REDACTED] and an unknown black female in her 30s, standing 5'6" which a heavy build. [REDACTED] does not know any of them. [REDACTED] asked [REDACTED] if this van was going along [REDACTED]. [REDACTED] confirmed and [REDACTED] got in the van, which seats 12 people. [REDACTED] went to the back bench and sat down, still talking on his phone. The van remained parked.

About five minutes later, [REDACTED] saw an unmarked black Chevrolet Impala pull up next to the van, in the street. Two police officers in plainclothes exited the car. PO1 approached the driver and asked him to open the door. [REDACTED] opened his driver's side front door and exited to speak to PO1. [REDACTED] did not know if he was compliant with the officers. PO2 came around to the passenger side, knocked on the window and said "If you don't open the door, I'm going to break this fucking window." [REDACTED] reached into the driver's side area and unlocked the back passenger door. PO2 opened the back passenger door and looked at the people inside. [REDACTED] took off his hat to allow the officer to see his face. PO2 asked [REDACTED] to step out of the vehicle. [REDACTED] agreed, told his girlfriend that he would call her back and began to exit the van. Before he had reached the door, PO2 reached inside, grabbing [REDACTED] by the front of his hooded sweatshirt and pulled him out of the van. PO2 then pushed [REDACTED] up against the van, so that his front side was pressed against the front passenger door of the van and his check was pressed against the window. PO2 pulled his arms behind his back, pulling them very high up [REDACTED] back close to his neck, and spoke on the radio, apparently confirming a description.

As PO2 stood behind him, PO2 nudged [REDACTED] knee outwards, with his own knee, causing [REDACTED] to slip to the side and fall a little. PO1 then grabbed [REDACTED] and pushed him into the van again, saying "Don't move." At some point, before other officers arrived, [REDACTED] said, towards PO1 and PO2, "Can I get a name or a badge number? I don't even know who you are." The officers ignored him.

Three marked NYPD cars arrived at the scene and between 6-10 additional uniformed officers, including PO3 and PO4, arrived. [REDACTED] did not see which officers came from which cars because they parked behind and on the other side of the van. A number of the officers approached him, causing [REDACTED] to be afraid and to shout, "Woah, woah, woah." PO1 and PO2 then pulled [REDACTED] off the side of the van and moved him in front of the van. PO3 put both of his hands on [REDACTED] chest, holding him, while PO2 placed [REDACTED] in handcuffs.

About a minute or two minutes after this, another marked NYPD car arrived at the location. In the backseat were two individuals, a black male and an Asian male in their late teens or 20s, with average builds, who [REDACTED] does not know and could not describe any further. The car was driven by PO5, who was alone. The two males in the back seat were looking at [REDACTED]. At this time, [REDACTED] and [REDACTED] went by the van on a bus driving northbound on [REDACTED]. They exited the bus and returned quickly to the location. They tried to speak to the police officers to explain [REDACTED] identity and that he'd been at work, and the officers told them to stand back. There was a crowd of 5-6 people, including [REDACTED] and [REDACTED].

[REDACTED] told the officers his name and said that they could check his identification, informing them that it was in his wallet in his back right pocket. PO1 reached into his pocket and removed his wallet and checked his identification. [REDACTED] told them

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that his paystub was also in the pocket and they could check that too. [REDACTED] heard the officers report his name on the radio. Then officers informed [REDACTED] that the people in the car had been robbed that night, but did not give any other details. They also told [REDACTED] that he fit the description of the robbery suspect, specifically mentioning the army fatigue jacket, a black hat which said "Diamond" and a grey hooded sweatshirt. They also told [REDACTED] that there have been robberies in the neighborhood. The handcuffs were taken off [REDACTED]. Afterwards, [REDACTED] asked for the officers names and badge numbers, while standing about four feet away from them. PO1 waved his hand at [REDACTED] appearing to dismiss him and turned away. PO2 told [REDACTED] that his name was Officer Young.

After the incident, [REDACTED] told [REDACTED] that she had seen what happened and heard him being slammed against the van. She gave [REDACTED] her number. [REDACTED] also got the name and number of [REDACTED] the driver of the van. [REDACTED] went home in the van and then went to the emergency room at [REDACTED] Medical Center. [REDACTED] was given an x-ray and released with Ibuprofen. He had bruises on his bicep which resulted from his arms being twisted behind him, bruises on his collar bone from being hit against the van, 3 scratches on his lower and 1 scratch on his upper back, and his shoulder was sprained. [REDACTED] thought he might have sustained the scratches from the handcuffs, from his own watch, or from the officer's watch.

PO1 was a Caucasian male in his 40s, standing 5'10-11" tall, with a heavyset build and slicked back brown or grey hair. He was wearing slacks, a sweater vest and a leather jacket.

PO2 was a Caucasian male in his late 30s, standing 5'10-11" tall, with a slim build and blond hair. He was wearing slacks and a leather jacket.

PO3 was a Caucasian male in his mid-20s, standing 6' tall, with an average build, wearing a uniform.

PO4 was an Asian or Hispanic female officer, wearing a uniform.

PO5 was a black male officer.

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Det. Young is a 37-year-old white male, standing 5'9", weighing 170 pounds, with blond hair and blue eyes. On October 12, 2012, Det. Young was assigned to the detective squad, working with Det. Spaeth, dressed in plainclothes (business attire), in an unmarked vehicle of unknown color at the time of the incident. Det. Young worked from 4:00 p.m. on October 12, 2012 to 1:00 a.m. on October 13, 2012.

Memo Book

Det. Young did not have any entries in his memo book relevant to this incident. At 10:30 p.m., Det. Young went to [REDACTED] in relation to a case he was investigating. At 12:20 p.m., Det. Young returned to the 63rd Precinct stationhouse.

CCRB Statement

On October 12, 2012, at an unknown time close to 11:30 p.m., Det. Young heard a call on the radio concerning for a robbery, which included a description of the perpetrator, a male black between 18 and 25 years old wearing a green-brown camouflage jacket. Det. Young could not recall if there were any additional details, but later stated that the male's build or weight was not provided. Det. Young and Det. Spaeth were not far and so they decided to do a canvas to assist in the search for the perpetrator. At [REDACTED] in Brooklyn, Det. Young and Det. Spaeth observed a dollar van parked and idling. The officers went around the block once, before approaching. When asked why they approached the van, Det. Young stated that it had been idling for a while. He could not recall if there were any other dollar vans in the vicinity. Det. Young did not see anyone enter the van.

As they approached the van, someone inside, who was later discovered to be a heavyset black male, locked the rear, right passenger door. Det. Young knocked on the van with his knuckles. Det. Young did not have his firearm out, and did not use it to knock on the van. The driver of the van, who was standing outside, came over and asked what the problem was. Det. Young requested that the driver open the van. The driver knocked on the window and told the people inside to open the door. Det. Young did not use any discourteous or offensive language, and did not say or hear Det. Spaeth say, "If you don't open the door, I'm going to break this fucking window."

The people inside the van unlocked the door and Det. Young opened the door. At this time, Det. Spaeth was standing next to him on the passenger side of the van. Before opening the door, Det. Young saw that there were two black females and a black male in the van. Det. Young excluded the male from his investigation because he weighed about 300 pounds and their description had not indicated that the male was heavyset.

Det. Young said, "Everyone step out of the van," and the three individuals complied, exiting the van. As Det. Young was getting the individuals out of the van and asking the heavyset male why he had locked the door. Det. Spaeth then noticed another male, [REDACTED] lying down on the floor of the van, in between the last two rows of seats in the van. Det. Spaeth said, "You, get out of the van," and Det. Young then also instructed [REDACTED] to exit. Det. Spaeth observed [REDACTED] through the open door of the van, and Det. Young was interacting with the other individuals, thus he hadn't seen [REDACTED] at this time. The officers saw that [REDACTED] was a black male, wearing a camouflage jacket, and therefore fit the description. [REDACTED] exited the van independently, the officers did not use any physical force in getting him out. The officers told [REDACTED] that he wasn't allowed to leave, and [REDACTED] kept saying, "I want to go, I just want to go," speaking a little loudly. The officers told him to wait. Det. Young and Det. Spaeth were not physically holding [REDACTED] and did not place him in handcuffs. Det. Young did not recall [REDACTED] being pushed against the van. Det. Young did not and did not see Det. Spaeth or any other officer pull [REDACTED] arms up behind his back. [REDACTED] was frisked. Det. Young obtained [REDACTED] identification, but could not recall whether he requested this and [REDACTED] provided it, or if he entered [REDACTED] pocket to retrieve it.

After [REDACTED] exited the van, Det. Young announced on the radio that they needed to arrange a show up. Additional officers arrived almost immediately. About three or four additional marked vehicles arrived, with approximately six to eight uniformed officers were dressed in uniform, but Det. Young could not recall which sectors arrived. Det. Young could not recall whether any supervisors were present. After about a minute, the complainants came to the scene in a police vehicle. At this time, Det. Young went over to the vehicle where the complainants were. Det. Young could not recall where Det. Spaeth was at this time. Prior to this, none of the additional officers approached and interacted with [REDACTED]. Det. Young did not know if any officers interacted with [REDACTED] after he went over to the car where the complainants were. When asked who was charged with watching [REDACTED] to ensure he didn't leave the scene, Det. Young stated that there were officers present other than himself and

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Det. Spaeth. He stated that generally if he walks away, Det. Spaeth would be responsible for looking after a suspect. Det. Young did not recall any other officer approaching and taking over responsibility for [REDACTED] at this time.

They looked at [REDACTED] and discussed whether he had perpetrated the crime. The complainants determined that [REDACTED] had not robbed them. The show-up lasted for about two minutes. Det. Young gave [REDACTED] his business card and he was released. When asked if [REDACTED] asked for his name, Det. Young said that [REDACTED] may have asked and that's why he gave [REDACTED] his car. Det. Young did not recall [REDACTED] asking for Det. Spaeth's name. Det. Young did not observe Det. Spaeth refuse to provide his name to [REDACTED]. Det. Young did not observe any indication that [REDACTED] was injured and did not see any way that he could have sustained such an injury during this incident. When asked if a UF-250 was prepared for this incident, Det. Young stated that neither he nor Det. Spaeth completed one.

Det. Young was subsequently assigned this case, and through his investigation determined that one of the two complainants had set up the robbery. He believed that [REDACTED] may have been involved in the robbery, but that during the show-up, the complainant who had arranged the robbery persuaded the other that [REDACTED] had not been involved. Det. Young cited the fact that when the complainant who had set up the robbery was arrested, Det. Young asked him about [REDACTED] and he said, "No comment."

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- *Det. Spaeth is a 40-year-old white male, standing 6' tall, weighing 240 pounds, with brown hair and blue eyes.*
- *On October 12, 2012, Det. Spaeth was assigned to investigations with the 63rd Precinct detective squad, with Det. Daniel Young. Det. Spaeth worked from 4:00 p.m. on October 12, 2012, until 12:20 a.m. on October 13, 2013. Det. Spaeth was dressed in plainclothes, business attire, and was driving an unmarked black sedan at the time of the incident.*

Memo book

Det. Spaeth had no memo book entries relevant to this incident. At 10:30 p.m., Det. Spaeth responded to [REDACTED], and he finished his tour at 12:20 a.m.

CCRB Statement

Det. Spaeth was interviewed at the CCRB on June 21, 2013. On October 12, 2012, Det. Spaeth had responded to [REDACTED] for a case, although he could not recall the details of the case or whether it was his investigation or Det. Young's investigation. At some point while they were out of the station house for this job, Det. Spaeth could not recall at what time, they heard on the radio, a "30," a robbery in progress. A black male in a camouflage jacket was involved. The color of camouflage was not provided. Det. Spaeth recalled that they were looking for one individual. He did not recall whether the age, height, or weight of the perpetrator was provided over the radio. Det. Spaeth could not recall what direction of flight was provided and could not recall whether it was an armed robbery. Det. Spaeth and Det. Young began canvassing for the perpetrator.

Det. Spaeth noted that perpetrators of crime in the area often use the dollar vans as a quick route out of the area. Det. Spaeth has worked in the area for nearly 16 years, including working with Anti-Crime, and had personally encountered situations in which perpetrators used dollar vans to escape the area more than 5 times. Det. Spaeth and Det. Young went to the intersection of [REDACTED] in Brooklyn, an area where dollar vans typically park and pick up passengers, which is a couple of blocks away from the location where the robbery had been reported.

At the intersection, there were several dollar vans, although Det. Spaeth could not recall exactly how many. Det. Spaeth and Det. Young approached a parked dollar van, which had numerous passengers inside, although Det. Spaeth could not recall how many. This van was the first that they approached and there was nothing that attracted their attention to this van specifically. Det. Spaeth spoke to the driver of the van (although Det. Young may have done this), who rolled down the window and spoke to them, asking him to open up the van. Det. Spaeth and Det. Young stood outside the van with their shields displayed, neither of them knocked on any windows of the van. Neither Det. Spaeth or Det. Young used any discourteous language, specifically neither of them said, "If you don't open this door, I'm going to break this fucking window." Neither Det. Spaeth or Det. Young had their firearms out and neither of them knocked on the window of the van with their gun.

The driver unlocked the doors of the van, and someone inside opened the back door on the passenger side. At this time, Det. Spaeth and Det. Young were standing on the passenger side of the van. Det. Spaeth saw [REDACTED] a black male wearing a camouflage jacket, leaning down to hide between the rows of seats in the back of the van. It was dark inside the van and there were about three or four rows. The individual was in the back row, or the row before the back row, leaning his body sideways and down towards the seat, so that one side of his body was visible over the seats, while the other side was obscured by the seats. The individual's body was not entirely stretched out and he was not lying on the seat. Det. Spaeth was able to see that he was wearing a camouflage jacket, but could not see whether he was leaning from sitting on the seat or from the floor of the van. Although there were other people in the van, Det. Spaeth could not recall how many or whether they were males or females.

Det. Spaeth asked [REDACTED] to exit the van, and [REDACTED] complied. Det. Spaeth did not physically pull him out of the van. Det. Spaeth did not ask any of the other passengers to exit the van and did not recall Det. Young asking anyone else to exit. The passengers exited after [REDACTED] but Det. Spaeth believed that this was because they didn't want to wait. As [REDACTED] exited, Det. Young called over the radio for the sector who had the two victims of the crime with them, requesting them to come to the location for a show-up. Det. Spaeth did not know which sector, and did not recall which officers, had the complainants with them.

Det. Spaeth told [REDACTED] that there had been a robbery and he fit the description. He explained that he would need to wait for a minute. Det. Spaeth frisked [REDACTED] waist. Det. Spaeth frisked [REDACTED] because he was stopped for robbery, which is a violent crime, therefore [REDACTED] was frisked for Det. Spaeth's safety and to be sure that he didn't have a weapon on him. Det. Spaeth could not recall whether he observed anything on [REDACTED] that appeared suspicious. Det. Spaeth described [REDACTED] as agitated, saying that he could see [REDACTED] was not happy to be stopped. [REDACTED] was not doing anything with his body

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and Det. Spaeth could not recall anything he was saying. [REDACTED] was standing on the sidewalk, he not physically restrained or held by Det. Spaeth or Det. Young. After explaining the situation, [REDACTED] did not attempt to leave or resist officers at all, so Det. Spaeth stated that there was no need to hold him. Det. Spaeth could not recall whether [REDACTED] was asked to stand up against anything during the stop. [REDACTED] was not handcuffed. Det. Spaeth did not, and did not see any other officer, pull [REDACTED] arms behind his back. Det. Spaeth did not and did not see Det. Young or any other officer lift [REDACTED] arms high up behind his back. Det. Spaeth did not, and did not see Det. Young or any other officer, push [REDACTED] up against the van, push his knees out to the side causing him to fall against the van. [REDACTED] did not request Det. Spaeth's name or badge number and Det. Spaeth did not refuse to provide his name or badge number. Det. Spaeth did not recall [REDACTED] requesting Det. Young's name or badge number, and did not witness Det. Young refusing to provide his name or badge number. Det. Spaeth did not obtain [REDACTED] identification, did not recall seeing it and did not recall whether Det. Young obtained [REDACTED] identification.

Within minutes, numerous other 63rd Precinct police officers came to the location, arriving after [REDACTED] had been frisked. There were 4-6 patrol cars, and uniformed officers, but Det. Spaeth could not recall any officers who were there. Det. Spaeth could not recall which supervisor came to the location. Some officers came over to Det. Spaeth, but he could not recall how many or which officers were helping with [REDACTED] No other officers physically interacted with [REDACTED]

The show-up was negative. After the show-up, Det. Spaeth left the scene of the incident and other officers, who he could not recall the identity or assignment of, took over speaking with [REDACTED] was informed that he was free to go, but Det. Spaeth did not tell him this. Det. Spaeth did not recall whether Det. Young told [REDACTED] that he was free to go. When informed that [REDACTED] had sustained a sprained shoulder during the incident, Det. Spaeth did not know how he sustained the injury and did not see anything happen that could have caused [REDACTED] to sustain this injury. Det. Spaeth did not prepare a Stop and Frisk report for [REDACTED] Det. Spaeth recalled hearing a conversation with a group of officers about needing to complete a Stop and Frisk report at the scene. Det. Spaeth did not know who was planning to complete the report, but thought that an officer from patrol was going to fill out a Stop and Frisk report for [REDACTED] Det. Spaeth did not bring up the topic or ask any other officer to complete a Stop and Frisk report and did not recall if Det. Young asked this. Det. Spaeth did not check to see whether a Stop and Frisk report was prepared.